

HOUSE No. 2401

The Commonwealth of Massachusetts

PRESENTED BY:

Mindy Domb and Kimberly N. Ferguson

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act providing for safe and consensual sensitive examinations.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Mindy Domb</i>	<i>3rd Hampshire</i>	<i>1/16/2025</i>
<i>Kimberly N. Ferguson</i>	<i>1st Worcester</i>	<i>1/16/2025</i>
<i>Natalie M. Blais</i>	<i>1st Franklin</i>	<i>3/17/2025</i>
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>3/31/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>3/17/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>3/17/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>4/4/2025</i>
<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>3/17/2025</i>
<i>Samantha Montaño</i>	<i>15th Suffolk</i>	<i>3/17/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>4/2/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>4/2/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>6/26/2025</i>

HOUSE No. 2401

By Representatives Domb of Amherst and Ferguson of Holden, a petition (accompanied by bill, House, No. 2401) of Mindy Domb and Kimberly N. Ferguson relative to safe and consensual sensitive examinations. Public Health.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act providing for safe and consensual sensitive examinations.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 111 of the General Laws is hereby amended by inserting after section 70H the
2 following section:-

3 Section 70I. (a) For the purposes of this section, the following words shall have the
4 following meanings:

5 “Health care organization”, an organization which employs one or more health care
6 providers.

7 “Health care provider”, a physician, a student in a medical or nursing school participating
8 in a course of instruction, a person participating in a residency program or clinical training
9 program, a physician assistant, an advanced practice registered nurse or other health care
10 provider.

11 "Sensitive examination", a breast, genital, pelvic, prostate or rectal examination.

“Medical chaperone”, a third party health care provider or trained unlicensed staff member who acts as a third-party witness for a patient and the patient’s health care provider during a sensitive examination. A medical chaperone may observe an exam or assist with the procedure, provide comfort and reassurance to the patient, assist in arranging interpreter services and ensure continuing consent to the exam, treatment or procedure.

(b) A health care provider may not perform a sensitive examination on an anesthetized, deeply sedated or unconscious patient or supervise the performance of a sensitive examination on an anesthetized, deeply sedated or unconscious patient unless the patient or the patient’s representative has given specific informed consent in writing to the sensitive examination using an authorized informed consent form; or the sensitive examination is immediately necessary for diagnosis or treatment of the patient; or, in the case of an emergency or urgent care situation on an unconscious patient, the sensitive examination is required for diagnostic or treatment purposes.

(c) (1) Except in the case of an emergency or urgent care situation, a patient shall have the right to request and have a medical chaperone present during a sensitive examination. A health care organization shall endeavor to provide, to the greatest extent possible, a medical chaperone who has the gender identity with which the patient is most comfortable.

(2) Before a sensitive examination, a health care provider shall provide notice to a patient or the patient’s representative of the right to request and have a medical chaperone present during a sensitive examination.

(3) The department shall promulgate regulations necessary for the implementation, administration and enforcement of this subsection including, but not limited to, documentation

required of health care providers and organizations, requirements and procedures for providing notice to patients, training requirements for chaperones and specific policies and protections for patients under the age of 18 and patients who lack the capacity to give informed consent.

(d) The department shall prepare one or more authorized informed consent forms to be used by a health care provider before performing or supervising the performance of a sensitive examination on an anesthetized, deeply sedated or unconscious patient as detailed in subsection (b) of this section. The form may be used in a paper or electronic format and shall be signed by the patient or the patient's representative before a sensitive examination is performed. The form shall be separate from any other notice or agreement and shall clearly identify that it requests consent for a sensitive examination. The form shall also clearly state the patient's right to request and have a medical chaperone present during a sensitive examination. In preparing the form, the department shall consider similar forms used in other states and consult with providers, medical educators and persons concerned about patient rights to autonomy.

(e) Actions by a health care provider not in compliance with this section shall be considered inconsistent or harmful to good patient care and safety under subsection (a) of section 203 of chapter 111.

(f) The commissioner shall promulgate regulations necessary for the implementation, administration and enforcement of this section.

SECTION 2. Subsection (b) of section 1 shall take effect no later than 60 days after the effective date of this act.

SECTION 3. This act shall take effect no later than 1 year after the effective date of this act.